

RESOLUTION NO. _____

ENTITLED: " A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES TO DISCHARGE UNCOLLECTIBLE DEBTS PURSUANT TO WYOMING STATUTE 16-4-502."

WHEREAS, Wyoming Statute § 16-4-502 provides for the discharge of uncollectible debts due and owing to a governmental entity upon proper certification to the governing body;

WHEREAS, the Board of Public Utilities (BOPU) has prepared a certification for uncollectible debts on the books of BOPU, a copy of which is attached to and incorporated as part of this Resolution as Appendix A;

WHEREAS, the debts have been reviewed by the appropriate BOPU staff and collection efforts have failed;

WHEREAS, BOPU desires to remove the uncollectible debts from its books as expediently as possible; and

WHEREAS, the Governing Body of the City of Cheyenne has reviewed the debts and determined to its satisfaction that the debts are uncollectible.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City Treasurer is authorized to discharge the uncollectible debts reflected in Appendix A of this Resolution in the amount of twenty-six thousand eleven dollars and forty cents (\$26,011.40) from the books of the City of Cheyenne Board of Public Utilities.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

Appendix A
Cheyenne Board of Public Utilities
2025 Uncollectible Debt

Customer	Name	Address	Water	Sewer	Misc Fees	2% City Assessment	BOPU total	Bill Due Date	Aged off last bill due date	Reason
554,924	BROWN, CHRISTOPHER	204 STANFIELD	\$ 267.84	\$ 447.73	\$ 102.60		\$ 818.17	7/14/2020	4.96	Greater than 4 years old
550,754	A SOLESBEE & S RODRIQUEZ	2712 WARREN	\$ 14.48	\$ 36.76	\$ 60.00		\$ 111.24	7/21/2020	4.95	Greater than 4 years old
555,203	TALAMANTES, NICOLE	1901 PERSHING	\$ 95.56	\$ 71.49	\$ 3.00		\$ 170.05	7/23/2020	4.94	Greater than 4 years old
553,922	DICKEN, JOSHUA & VICTORIA	3552 CONCORD	\$ 30.19	\$ 39.16			\$ 69.35	8/14/2020	4.88	Greater than 4 years old
502,770	PINNEY, MARGARET	1404 WOODWARD	\$ 14.35	\$ 13.98			\$ 28.33	10/27/2020	4.68	Greater than 4 years old
515,566	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (N&P)	\$ 208.60	\$ 173.70			\$ 382.30	11/2/2020	4.66	Greater than 4 years old
515,559	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (H)	\$ 625.16	\$ 544.50			\$ 1,169.66	11/2/2020	4.66	Greater than 4 years old
515,567	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (L)	\$ 361.00	\$ 311.03			\$ 672.03	11/2/2020	4.66	Greater than 4 years old
515,560	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (G&M)	\$ 284.80	\$ 240.65			\$ 525.45	11/2/2020	4.66	Greater than 4 years old
515,555	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (J&I)	\$ 264.48	\$ 237.21			\$ 501.69	11/2/2020	4.66	Greater than 4 years old
515,569	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (L7)	\$ 188.00	\$ 163.22			\$ 351.22	11/2/2020	4.66	Greater than 4 years old
515,570	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (L9)	\$ 147.36	\$ 130.60			\$ 277.96	11/2/2020	4.66	Greater than 4 years old
515,572	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (K)	\$ 137.48	\$ 113.61			\$ 251.09	11/2/2020	4.66	Greater than 4 years old
515,568	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (L6)	\$ 85.38				\$ 85.38	11/2/2020	4.66	Greater than 4 years old
515,562	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (M17)	\$ 23.14	\$ 18.70			\$ 41.84	11/2/2020	4.66	Greater than 4 years old
515,571	FRONTIER MALL-CBL MGM-ATTN: AP	1400 DELL RANGE BLVD (K12)	\$ 20.65	\$ 12.38			\$ 33.03	11/2/2020	4.66	Greater than 4 years old
554,980	SMITH, ETHAN	213 AMES	\$ 7.89	\$ 113.37			\$ 121.26	11/16/2020	4.62	Greater than 4 years old
546,915	GEORGE, NICHOLAS	358 BOCAGE	\$ 64.18	\$ 57.69			\$ 121.87	11/20/2020	4.61	Greater than 4 years old
535,597	LINDELL, LONNIE	1273 WENDY	\$ 42.77	\$ 83.55	\$ 30.00		\$ 156.32	12/11/2020	4.55	Greater than 4 years old
501,149	HERRERA, JOE	600 9TH	\$ 42.84	\$ 89.12	\$ 85.00		\$ 216.96	1/7/2021	4.48	Greater than 4 years old
546,474	SMITH, JASON & RACHAEL	5000 HILLTOP	\$ 22.10	\$ 55.96			\$ 78.06	1/11/2021	4.47	Greater than 4 years old
541,403	MATA, TOMAS	1014 CREST PARK	\$ 13.26	\$ 67.12			\$ 80.38	1/25/2021	4.43	Greater than 4 years old
549,571	JONES, MICHELLE	202 5TH	\$ 57.84	\$ 51.01	\$ 3.00		\$ 111.85	1/27/2021	4.42	Greater than 4 years old
551,158	HOLSTED, REGINA & ROGER	5033 PINERIDGE	\$ 10.61	\$ 35.85			\$ 46.46	1/29/2021	4.42	Greater than 4 years old
530,716	KELLEHER, MARIE	1519 ADAMS	\$ 30.19	\$ 55.14	\$ 94.10		\$ 179.43	2/2/2021	4.41	Greater than 4 years old
558,791	CHC HOLMES CORNER CHEYENNE WY	2815 RIDGE	\$ 3,461.22	\$ 566.73	\$ 18.00		\$ 4,045.95	2/23/2021	4.35	Greater than 4 years old
536,416	RB ENTERPRISES	5016 SUNNY RIDGE	\$ 9.32	\$ 24.78			\$ 34.10	2/23/2021	4.35	Greater than 4 years old
555,660	HOUSEMAN, BRANDON	3446 GREEN VALLEY	\$ 6.53	\$ 33.05			\$ 39.58	2/26/2021	4.34	Greater than 4 years old
562,563	QUADE LLC	2118 LINCOLNWAY	\$ 121.20	\$ 2.44			\$ 123.64	3/5/2021	4.32	Greater than 4 years old
510,475	J & G PROPERTY HOLDINGS LLC	3317 BELAIRE	\$ 45.02	\$ 71.26			\$ 116.28	3/12/2021	4.30	Greater than 4 years old
526,405	REA, SARAH E	3462 LUCKIE	\$ 4.28	\$ 21.69			\$ 25.97	3/15/2021	4.30	Greater than 4 years old
559,091	WAGNER, TRISTEN	1404 MEDLEY			\$ 12.00		\$ 12.00	4/6/2021	4.24	Greater than 4 years old
554,282	H ROSE LLC	119 4TH	\$ 1,201.88	\$ 1,071.30	\$ 19.80		\$ 2,292.98	4/7/2021	4.23	Greater than 4 years old
543,905	MADRID, JOSEPH	4602 13TH	\$ 17.88	\$ 34.17			\$ 52.05	4/9/2021	4.23	Greater than 4 years old
530,333	HAVENS, KEIRA	1934 PERSHING	\$ 12.41	\$ 21.68			\$ 34.09	4/13/2021	4.22	Greater than 4 years old
559,933	VAN BEEK, PAULA & AUSTIN	3619 DUNN	\$ 12.44	\$ 62.99	\$ 19.80		\$ 95.23	4/27/2021	4.18	Greater than 4 years old
561,587	BASS, CLAYTON	4102 6TH	\$ 33.18	\$ 78.48	\$ 3.00		\$ 114.66	5/19/2021	4.12	Greater than 4 years old
555,254	NIELSON, STACY	1015 HACIENDA	\$ 85.52	\$ 86.74	\$ 3.00		\$ 175.26	5/21/2021	4.11	Greater than 4 years old
558,022	SANDNESS, QUINN	4801 SPUR	\$ 31.89	\$ 33.09			\$ 64.98	5/21/2021	4.11	Greater than 4 years old
548,713	WEBBER, TONI	826 OLD TRAIL	\$ 99.50	\$ 84.30			\$ 183.80	6/1/2021	4.08	Greater than 4 years old
547,587	DOAN, LAN	1412 MADISON	\$ 12.21	\$ 26.67			\$ 38.88	6/3/2021	4.08	Greater than 4 years old
559,066	DEMERS, DUELL TAYLOR	716 TAGGART	\$ 21.01	\$ 26.19			\$ 47.20	6/4/2021	4.07	Greater than 4 years old
547,468	RIMMASCH, JOHN & BECKY	831 SHADOW MOUNTAIN	\$ 17.89	\$ 91.07	\$ 3.30	\$ 2.23	\$ 114.49	1/16/2024	1.45	Bankruptcy
610,437	PJP ENTERPRISES (CLOSED)	1781 FLEISCHLI	\$ 1,573.17	\$ 1,077.07	\$ 41.73	\$ 68.44	\$ 2,760.41	9/5/2024	0.82	Bankruptcy
656,796	PJP ENTERPRISES (CLOSED)	1781 FLEISCHLI	\$ 4,414.69	\$ 1,390.46		\$ 73.46	\$ 5,878.61	10/7/2024	0.73	Bankruptcy

Appendix A
Cheyenne Board of Public Utilities
2025 Uncollectible Debt

Customer	Name	Address	Water	Sewer	Misc Fees	2% City Assesment	BOPU total	Bill Due Date	Aged off last bill due date	Reason
501,148	BURK, LLOYD	819 MAXWELL	\$ 14.13	\$ 15.62	\$ 33.08	\$ 0.59	\$ 63.42	1/6/2023	2.48	Deceased
513,725	MACKEY, MARTHA	4764 MAPLE	\$ 6.75	\$ 17.10			\$ 23.85	3/23/2023	2.27	Deceased
501,344	TRUJILLO, JOHN D	218 6TH	\$ 18.30	\$ 42.62	\$ 18.52	\$ 2.30	\$ 81.74	4/4/2023	2.24	Deceased
501,913	KNUDSON, LILYANNA	326 CRIBBON	\$ 33.08	\$ 56.57		\$ 1.78	\$ 91.43	7/26/2023	1.93	Deceased
509,821	PINTHER, MRS. T. ELVIRA	1540 NEWTON	\$ 17.18	\$ 37.18		\$ 1.09	\$ 55.45	9/21/2023	1.78	Deceased
512,389	ADAMS, RON	3319 BIRCH	\$ 6.75	\$ 40.74		\$ 2.40	\$ 49.89	12/13/2023	1.55	Deceased
565,786	FRYE, BRIAN	3611 BRADLEY	\$ 67.50	\$ 341.10	\$ 57.46	\$ 8.20	\$ 474.26	12/28/2023	1.51	Deceased
552,038	KRUSICH, SHEILA	2329 COUNCIL	\$ 40.07	\$ 201.00	\$ 18.52	\$ 4.84	\$ 264.43	1/2/2024	1.49	Deceased
500,669	WILSON, WAYNE	702 2ND	\$ 46.27	\$ 94.76			\$ 141.03	1/8/2024	1.48	Deceased
517,985	HANSEN, JACK	919 PIKE	\$ 106.61	\$ 386.64	\$ 6.46	\$ 9.89	\$ 509.60	1/10/2024	1.47	Deceased
557,016	OVERBERG, RICKEY A	707 6TH	\$ 10.94	\$ 28.23	\$ 37.60	\$ 0.78	\$ 77.55	1/12/2024	1.47	Deceased
508,301	MASON, JANICE	2817 9TH	\$ 28.56	\$ 90.52	\$ 3.30	\$ 2.39	\$ 124.77	4/5/2024	1.24	Deceased
500,619	CASTILLO, RICHARD	516 3RD	\$ 10.94	\$ 29.02	\$ 3.30	\$ 1.06	\$ 44.32	5/2/2024	1.16	Deceased
506,210	BOGENSBERGER, DONALD	614 21ST	\$ 10.45	\$ 15.33		\$ 0.52	\$ 26.30	6/5/2024	1.07	Deceased
523,511	RIEKENS, EDWARD D. JR.	1906 21ST	\$ 27.16	\$ 25.26	\$ 74.30	\$ 1.04	\$ 127.76	6/28/2024	1.01	Deceased
500,573	BRADY, TERRANCE	407 HOUSE	\$ 82.46	\$ 144.55	\$ 46.95	\$ 4.55	\$ 278.51	8/15/2024	0.87	Deceased
551,093	CHAMBERS, THOMAS	1208 6TH	\$ 186.41	\$ 354.38	\$ 82.65	\$ 10.84	\$ 634.28	8/22/2024	0.85	Deceased
566,351	BRECKENRIDGE PROPTERY FUND LLC	414 5TH	\$ 4.05	\$ 20.47		\$ 0.49	\$ 25.01	4/13/2023	2.22	De minimis
564,172	NUSS, JERRY & KRISTIN	915 FOYER	\$ 3.38	\$ 8.55		\$ 0.24	\$ 12.17	5/1/2023	2.17	De minimis
544,264	K AND T SALES INC	1500 STINSON	\$ 3.89	\$ 3.38		\$ 0.15	\$ 7.42	6/27/2024	1.01	De minimis
561,873	LIFEPLAN LLC	103 8TH	\$ 6.80	\$ 12.28		\$ 0.38	\$ 19.46	7/10/2024	0.97	De minimis
560,588	LIFEPLAN LLC	107 8TH	\$ 6.80	\$ 5.92		\$ 0.25	\$ 12.97	7/10/2024	0.97	De minimis
658,845	HOMESTEAD HOMES LLC	710 6TH	\$ 4.13	\$ 9.83		\$ 0.28	\$ 14.24	12/12/2024	0.55	De minimis
Report Total			\$ 14,984.00	\$ 9,948.74	\$ 880.47	\$ 198.19	\$ 26,011.40			
Allocation of Misc Fees			\$ 440.24	\$ 440.24	\$ (880.47)					
Fund Total			\$ 15,424.24	\$ 10,388.98	\$ -	\$ 198.19	\$ 26,011.40			



Board of Public Utilities

Cheyenne Water and Sewer Departments

2416 Snyder Ave.
Cheyenne, Wyoming 82001
(307) 637-6460
www.cheyennebopu.org

To: Governing Body of the City of Cheyenne

From: Cheyenne Board of Public Utilities

Re: Uncollectible Accounts Process- FY2025

BOPU Billing and Collection Process for Active Customer Accounts

The BOPU bills its customers on a monthly basis. Customers payments are due approximately 20 days after the bill date. A customer bill is considered late when a payment has not been received by the time their next bill prints. This is approximately 5 days after the due date on a customer's monthly bill. Once a customer is considered late, a finance charge is applied to the customer's account thru the monthly billing process. A delinquency statement is included on a customer's monthly statement once a late penalty fee of \$3.30 has been applied. The below table provides further discussion/example regarding BOPU's process to collect on an active delinquent account.

Date	Activity
May 10, 2024	Customer statement is mailed for April usage
June 10, 2024	Customer statement is mailed for May usage and April's delinquent amount along with a billed late fee. Customer statement includes a delinquency shut off notice including date in red at the bottom of the bill.
July 1, 2024	Disconnect/shutoff phone call occurs. If customer service is unable to contact customer then a door card is dropped off at the property associated with the delinquent bill.
July 6, 2024	If no payment is received or payment plan set up, a disconnect/shutoff occurs and customer is billed a \$40.00 disconnect fee.
September 10, 2024	Customer account turned over to collections [Collection Center, Inc. (CCI)] after collection measures have been exhausted. This only occurs if the amount due is greater than \$25 and 120 days have passed since last customer payment].

Beyond the above timeline, BOPU attempts to contact customers via phone or email once their account becomes delinquent. During these attempted contacts, BOPU provides the customer with the opportunity to set up a payment plan to avoid shutoff. Typically, a customer is granted 1 payment plan every 6 months in an effort to help stop the customer being on the shutoff list monthly. If a customer does not pay, their account is considered suspended and will continue to accrue monthly service fees until the customer requests their meter be removed. Once a meter is removed, monthly service fees are stopped and the account balance no longer accrues additional charges.

BOPU Billing and Collection Process for a Finalized Account.

BOPU will initiate a final reading on a customer meter when notification of a transfer of ownership or change in tenant is received. At time of notification, BOPU attempts to receive updated contact information to ensure final bill is sent to former customers correct forwarding address. After a final reading occurs, the customer's account will be billed during the next billing cycle for the address. If no payment is received by the due date on the customer bill, the following process occurs:

60 days after final bill- A customer service representative will make a call to the last number on file. The phone call informs the customer a balance remains outstanding with BOPU. The customer service representative will attempt to collect from the customer over the phone.

90 days after final bill- A collection letter is mailed to the customer with the final bill attached. The collection letter provides the customer with an additional copy of their unpaid bill but also puts them on notice the account will be sent to collections if not paid within 30 days.

120 days after final bill- At this point, we have exhausted all collection efforts and the customer account is turned over to our collection agency to begin their collection process if amount owed is greater than \$30. If account is under \$30, collection process halts unless customer calls to set up a new service.

Collection Company Fees- Based on BOPU's contract with Collection Centers, Inc, the fee for recovery is 25% of the customers account balance unless Collection Centers, Inc pursues legal action in which case the fee increases to 35%.

Property Foreclosures

Many properties are foreclosed on annually. BOPU only becomes aware of a foreclosure when we are notified by the former customer, a real estate agent or a mortgage lender. In many of these cases, the customer account is finalized thru the above process. BOPU then establishes a new customer account for the mortgage lender as they are now considered the property owner. Many mortgage lenders will elect to have BOPU enter the home and pull the water meter to stop all water and sewer charges. In other cases, BOPU will bill the mortgage lender like any other customer and send monthly statements to the address provided by the mortgage lender or address listed on the county assessor's website. BOPU follows the above described customer billing and collection processes for all mortgage lenders.

Tenant Accounts When Tenant Pays BOPU and Sanitation Charges

All property owner/manager/tenant accounts must include both the property owner and the tenant names on the account. This allows the BOPU to reduce the risk of non-payment as when a tenant moves out, the account reverts back to the property owner along with any amounts unpaid by the tenant. As protection to the property owner, a tenant is not allowed to have a payment plan without the property owner's approval. In addition, property owners are also notified when a customer account becomes delinquent. BOPU follows the above described customer billing and collection process for all property owner/manager/tenant accounts.

Bankruptcy

BOPU will not consider an account uncollectable until a copy of the formal discharge of the customer debt is provided by the customer, the bankruptcy court or identified by our third party collection company. Once a delinquent account has been discharged through bankruptcy all collection efforts are stopped.

Deceased

BOPU will not consider a deceased customer's account as uncollectable until formal documentation is received, and transfer of property ownership occurs. The Cheyenne Board of Public Utilities will attempt to collect funds through the probate process if a notice of distribution of estate is provided to the Cheyenne Board of Public Utilities. If Cheyenne Board of Public Utilities is not notified of a customer being deceased, then the above

collection process continues until notification occurs either from an estate representative or our third-party collection company. Once notification is received all collections efforts are stopped.

Other Information

Communications with Collection Centers, Inc- BOPU staff continue to communicate with the Collection Centers, Inc. staff. This communication includes receiving updates on collection efforts, reconciling customer account balances (especially those in shut-off status but have active meters), reviewing supporting documentation sent for best practices and addressing any customer concerns.

Tyler Notify- BOPU began using a new customer communication tool known as Tyler Notify in FY 2024. The use of this tool continued in FY 2025. This tool allows BOPU's Customer Service Department to send automated communications to delinquent customers. The automated communication can only occur if a BOPU Customer Service Representative originates the message. The message can occur in the form of a phone call, text message or email. BOPU then reviews a communication response rate report to determine if further communication is required with a customer prior to a customer's water service being disconnected.

Disconnect/Reconnect Process- BOPU approaches the shutoff/reconnect process very customer centered. The BOPU customer service team will attempt to make contact with customers 2 bills behind (approximately 40-100 customers per billing cycle) thru the Tyler Notify System 3 to 5 business days before the disconnect date and time listed on a customer bill. Over the next 3 to 5 business days typically 20-60 customers make a payment or set up a payment plan which removes the customer from the disconnect list. The remaining customers, 20 to 40 remain on the disconnect list.

The customer service team provides the meter information tech team with the list of customers set for disconnect on a daily basis. A member of the meter information tech team attempts to make in person contact with all customers on the disconnect list prior to disconnecting their water service. If the Meter Information Tech team member is able to make contact with the customer, they will ask the customer to call customer service to make a payment, go online and set up a payment arrangement or in extreme cases provide a check. If the customer is not home, unable to pay, or set up a payment arrangement, the meter information tech will then disconnect the customer's water service and leave a door card for the customer providing them with BOPU's contact information including the after-hours contact number.

The reconnect process is then initiated by the customer. BOPU timely reconnects services during regular business hours. If a customer calls in after hours, BOPU's duty guy responds to the property. If the customer had not previously contacted customer service, the customer will be required to sign a promissory note. The promissory note then requires the customer to contact customer service before noon on the following business day. If the customer does not pay, call, or submit an approved payment arrangement, the customer's water will once again be disconnected.

BOPU does require the customer to be present at the property for reconnection to avoid any unknown leaks that could damage the property.